

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3552

By: Maynard

COMMITTEE SUBSTITUTE

An Act relating to children; authorizing childcare providers to charge differential; prohibiting the Department of Human Services from penalizing or taking adverse action against providers; requiring providers to apply differential uniformly; directing the Department to promulgate rules; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 431 of Title 10, unless there is created a duplication in numbering, reads as follows:

A. Upon approval by the Administration for Children and Families, a licensed or permitted childcare provider serving a child eligible for the Department of Human Services' Child Care Subsidy Program may charge the child's parent or legal guardian the difference between:

1. The Department's subsidy reimbursement rate applicable to the child; and

1 2. The provider's standard private tuition rate for the same
2 age group and schedule.

3 B. The Department shall not:

4 1. Prohibit, restrict, or penalize a provider for charging a
5 differential authorized pursuant to this act; or

6 2. Take adverse action against a provider, including, but not
7 limited to, disqualification, enhanced monitoring, subsidy
8 enrollment restrictions, or corrective action, solely due to the
9 provider charging a differential pursuant to this act.

10 C. Providers who charge a differential shall apply the
11 differential uniformly to all similarly situated families.

12 D. The Department shall promulgate rules, update subsidy
13 agreements, and provide guidance documents to comply with the
14 provisions of this act.

15 SECTION 2. This act shall become effective November 1, 2026.

16

17 60-2-17054 CMA 03/05/26

18

19

20

21

22

23

24